

Hat Labs Reseller Terms

Standard terms for the purchase and resale of Hat Labs products

Version 0.2 · 2026-08-28 · **DRAFT — not for signature**

These Terms apply between Hat Labs Oy, business ID 3178629-6, of Yliskylänkaari 4, 00840 Helsinki, Finland (“Hat Labs”) and the company named in the Reseller Annex (“the Reseller”). They take effect on the date stated in the Annex.

1. THE AGREEMENT

- 1.1 These Terms and a signed Reseller Annex together form the agreement. The Annex names the Reseller and sets the commercial detail. Neither document has effect without the other. If they conflict, the Annex prevails. Terms printed on or referenced by a Reseller purchase order do not apply, even if Hat Labs confirms the order without objecting.
- 1.2 Hat Labs may amend these Terms on 60 days’ written notice. An amendment does not affect orders already confirmed, and the Reseller may terminate under clause 8.1 if it objects. Email counts as writing throughout these Terms.

2. APPOINTMENT

- 2.1 Hat Labs appoints the Reseller as a non-exclusive reseller of its products. The Reseller buys in its own name and for its own account, and resells on its own terms and at its own risk. Hat Labs may continue selling to the Reseller’s main market and may appoint other resellers at any time.
- 2.2 The Reseller is an independent contractor. It is not an agent, employee or franchisee of Hat Labs, and has no authority to bind Hat Labs or to give any warranty on its behalf.

3. ORDERS, PRICES AND DELIVERY

- 3.1 Orders are placed through the channel named in the Annex and bind the parties when Hat Labs confirms them. Prices, and the way they are set and changed, are stated in the Annex. Prices are in euro and exclude value added tax, other taxes and customs duties.
- 3.2 Delivery is DAP at the delivery address stated in the Annex (Incoterms 2020) unless the Annex states otherwise. Title passes when Hat Labs has been paid in full. The Reseller reports shortages, wrong items and transit damage within 10 business days of delivery.
- 3.3 Payment terms are stated in the Annex; where it says nothing, payment is due in advance of dispatch. On late payment Hat Labs may charge interest at the rate set by the Finnish Interest Act (633/1982) and may suspend deliveries while an invoice is overdue. The Reseller may not withhold or set off any amount against an invoice.

4. RESALE

- 4.1 The Reseller contracts with its customers in its own name, and is responsible for its own sales terms, its own returns policy, and the consumer protection law that applies to its sales.
- 4.2 The Reseller does not remove or alter any marking, type plate or conformity mark, and does not modify, repackage or rebrand a product without Hat Labs’ written consent. A product it modifies or rebrands becomes its own product for regulatory purposes, and Hat Labs gives no warranty for it.
- 4.3 The Reseller sets its own resale prices. Nothing in these Terms restricts the price at which it sells or advertises a product.

- 4.4 The Reseller is responsible for compliance in every market it sells into, including any approval, registration, labelling or importer identification required there. It does not sell or re-export to a party or destination subject to European Union or United States sanctions or export restrictions.
- 4.5 The Reseller records which Hat Labs order each product it sells came from, keeps that record for 24 months after the sale, and makes it available to Hat Labs if a product has to be recalled or corrected in the field.

5. WARRANTY

- 5.1 Hat Labs warrants each product to be free from defects in material and workmanship under normal use for 24 months from the sale to the end customer, and in any event no later than 36 months after the date of Hat Labs' invoice for that product.
- 5.2 The warranty does not cover misuse, accident, exposure beyond the rated protection class of the product, incorrect supply voltage or wiring, modification or repair not authorised by Hat Labs, normal wear of connectors, cables, seals, batteries and energy-storage components, or third-party goods supplied for convenience.
- 5.3 The Reseller carries out first-line diagnosis. A claim gives the Hat Labs order the product came from, the date of sale to the end customer, a description of the fault, and any photographs or logs Hat Labs reasonably asks for.
- 5.4 **The defective unit does not have to be returned.** On an accepted claim Hat Labs will, at its option, ship a replacement with the Reseller's next order, ship a replacement part, or issue a credit note for the price the Reseller paid. Hat Labs may require a unit to be returned for failure analysis and pays the carriage when it does, and may require the return of every unit claimed under a product whose claim rate exceeds the figure stated in the Annex. A unit that is not returned must be taken permanently out of service, and must not be resold, repaired for resale or otherwise put back on the market.
- 5.5 This clause states the Reseller's only remedy for a defective product. The warranty runs to the Reseller and not to the end customer. The warranty the Reseller gives its own customers, and the cost of honouring it, are the Reseller's own responsibility.

6. BRAND

- 6.1 Hat Labs grants the Reseller a non-exclusive, non-transferable, revocable licence to use the Hat Labs name, logo, product names and product images to advertise and resell the products, in the form Hat Labs supplies. All goodwill in the marks accrues to Hat Labs. The licence ends on termination, as provided in clause 8.2.
- 6.2 The Reseller does not apply to register any Hat Labs mark or a confusingly similar mark, and does not register a domain name, marketplace store name, social media account or application listing whose name contains one, in any country.

7. LIABILITY

- 7.1 Hat Labs indemnifies the Reseller against third-party claims for death, personal injury or damage to tangible property caused by a defect in a product as supplied by Hat Labs, except to the extent clause 7.2 applies.
- 7.2 The Reseller indemnifies Hat Labs against any claim, loss or cost arising from its own statements, advice or marketing; from modification, integration, repackaging or relabelling of a product; from installation or service work it performs; from storage or handling outside the conditions Hat Labs specifies; or from its breach of these Terms.
- 7.3 The Reseller maintains commercial general liability insurance, including product liability cover, for at least the amount stated in the Annex, and names Hat Labs as an additional insured under it. It keeps the cover in force for as long as this agreement runs and for two years afterwards, and provides a certificate of insurance on request.
- 7.4 Neither party is liable for indirect or consequential loss, or for loss of profit, revenue, data or business. Hat Labs' total liability in any 12-month period is limited to the amount the Reseller paid for products in the 12 months before the event, except under clause 7.1, where it is limited to the greater of that amount and the sum recovered under Hat Labs' product liability insurance. Nothing excludes liability for death or personal injury caused by negligence, or for fraud.

8. TERM AND TERMINATION

- 8.1 This agreement starts on the date stated in the Annex and runs indefinitely. Either party may terminate it for convenience on 90 days’ written notice, or immediately for a material breach not remedied within 30 days, or for insolvency.
- 8.2 On termination the Reseller may sell the products it already holds in stock, for as long as it takes. It stops presenting itself as a Hat Labs reseller and stops using the Hat Labs name and logo in its own advertising, but may still identify the products it sells by their product names. Hat Labs may either cancel confirmed orders that have not shipped or fulfil them against payment in advance.
- 8.3 No compensation, indemnity, goodwill payment or payment for lost profit is due to the Reseller on termination or non-renewal, however the agreement ends. The parties agree that this agreement creates no dealership, distributorship, franchise or agency relationship protected by statute, and the Reseller waives any such protection so far as the law allows it to be waived.
- 8.4 The Warranty, Brand and Liability sections survive termination, the Warranty section for products already sold.

9. GENERAL

- 9.1 This agreement is governed by the law of Finland. The United Nations Convention on Contracts for the International Sale of Goods does not apply. Any dispute is finally settled by arbitration under the Arbitration Rules of the Finland Chamber of Commerce, before one arbitrator, seated in Helsinki, in English. Either party may apply to a competent court for interim relief, and Hat Labs may bring a claim for an undisputed unpaid invoice before the District Court of Helsinki.
- 9.2 Notices are given in writing to the addresses in the Annex. The Reseller may not assign this agreement without Hat Labs’ written consent; Hat Labs may assign it to a group company or to a buyer of the business. These Terms and the Annex are the entire agreement between the parties on their subject. If a provision is invalid, the rest continues in force.

10. SIGNATURES

The parties sign these Terms together with the Reseller Annex. Signing the Annex alone is enough where the Annex identifies the version of these Terms it adopts.

Hat Labs Oy

For and on behalf of Hat Labs Oy

The Reseller

For and on behalf of the Reseller

Signature

Signature

Name in block capitals

Name in block capitals

Title

Title

Date

Date